Alabama Rules of Criminal Procedure

Rule 34. Form, content, and service of motions and requests.

Rule 34.5. Notice of orders.

Upon the entry of any order in a criminal proceeding made in response to a motion, other than an order made in open court, the clerk shall, without undue delay, furnish all parties a copy thereof by mail, e-mail, text message, or other appropriate means approved by the judge. Service by e-mail or text message is complete upon transmission to a party's last provided e-mail address or cellular-telephone number.

[Amended 9-24-2026, eff. 10-1-2026]

Committee Comments

The rule is derived from Rule 49(c), Fed.R.Crim.P. The rule refers to all orders made by the court on any motion or request, except those in open court. Mailing each party a copy would not be required if an alternative method, such as attorneys' boxes, is used by the clerk with approval of the court.

Note from the reporter of decisions: The order amending Rule 7.3(a) and Rule 34.5, Alabama Rules of Criminal Procedure, effective October 1, 2026, is published in that volume of *Alabama Reporter* that contains Alabama cases from __ So. 3d.